

Clear Form

FEDERAL BUREAU OF PRISONS SUBCONTRACTING PLAN TEMPLATE

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The Federal Bureau of Prisons (Bureau) provides this template as guidance to be used by contractors required to submit individual subcontracting plans that are consistent with Federal Acquisition Regulation (FAR) subpart 19.7 – *The Small Business Subcontracting Program*.

Contractors should refer to the FAR and the solicitation when adapting this template for use. This template is not intended to waive any additional requirements contained in the FAR or the solicitation, nor is it intended to replace any existing Corporate/Commercial Plan that is more extensive.

For assistance locating small business sources, contact the Bureau's Small Business Program at BOP-ADM-SmallBusinessProgram-S@bop.gov.

Fill out the highlighted areas only. All other fields, including calculations, will auto-populate.

BUREAU SUBCONTRACTING GOALS	
Small Business (SB)	36%
Small Disadvantaged Business (SDB)	5%
Women-Owned Small Business (WOSB)	5%
Service-Disabled Veteran-Owned Small Business (SDVOSB)	5%
HUBZone Small Business (HUBZone)	3%
Veteran-Owned Small Business (VOSB)	*N/A
*The Bureau does not have a separate goal for VOSB. However, FAR 19.704 requires inclusion of VOSB goals in each subcontracting plan.	

OFFEROR/CONTRACTOR IDENTIFICATION DATA	
Date Prepared:	NAICS Code:
Offeror/Contractor Name:	
SAM.GOV: Unique Entity ID (UEI)	
Item/Service (General Description):	
Solicitation Number:	
This solicitation contains FAR 52.217-8 Option to Extend Services (check one): NO ☐ YES ☐	
Place of Performance (City/State/Country):	
Incumbent (check one): NO ☐ YES ☐	
Total Dollar Value of Contract (include the Base Year and, if applicable, Option Years & FAR 52.217-8):	
\$ _____	

TYPE OF PLAN (check one) FAR 19.701 & FAR 19.704(d)	
☐	Individual: Items developed for this contract and applicable for the full term of contract, including option periods.
☐	Master: Only goals developed for this contract. All other elements are standard.
☐	Commercial: Goals developed with initial agency on a company-wide basis. If checked, stop here and attach plan.

SUBCONTRACTING PLAN REQUIREMENTS**FAR 19.702**

Use best faith efforts and realistic stretch goals to estimate total subcontracting dollars planned for SB and "other than small business" (OTSB).

- If planned subcontracting goals are below the Bureau's target goals, explain below.
- Incumbents with planned subcontracting goals lower than the goals of the incumbent contract, explain below.

Attach additional sheets if necessary.

**TOTAL VALUE OF CONTRACT
&
TOTAL PLANNED SUBCONTRACTING DOLLARS
FAR 19.704(a)(1-2)**

- Complete all highlighted lines that are applicable to this contract.

TOTAL DOLLAR VALUE OF CONTRACT, INCLUDING OPTIONS	LINE 1	Base Period		\$	
	LINE 2	Option 1		\$	
	LINE 3	Option 2		\$	
	LINE 4	Option 3		\$	
	LINE 5	Option 4		\$	
	LINE 6	Option 5		\$	
	LINE 7	Option 6		\$	
	LINE 8	Option 7		\$	
	LINE 9	Option 8		\$	
	LINE 10	Option 9		\$	
	LINE 11	FAR 52.217-8 Option to Extend Services		\$	
	LINE 12	Total dollar value of the contract, including all options		\$ 0	
<i>LINES 1-12 become the denominators used to auto-calculate the goals labeled "Percentage (%) of Contract Dollars" in the following section. The numerators used are the "Total Planned Subcontract Dollars" for each period of performance.</i>					
TOTAL DOLLARS PLANNED TO BE SUBCONTRACTED			COLUMN A SB	COLUMN B OTSB	COLUMN C SB + OTSB
	LINE 13	Base Period	\$	\$	\$ 0
	LINE 14	Option 1	\$	\$	\$ 0
	LINE 15	Option 2	\$	\$	\$ 0
	LINE 16	Option 3	\$	\$	\$ 0
	LINE 17	Option 4	\$	\$	\$ 0
	LINE 18	Option 5	\$	\$	\$ 0
	LINE 19	Option 6	\$	\$	\$ 0
	LINE 20	Option 7	\$	\$	\$ 0
	LINE 21	Option 8	\$	\$	\$ 0
	LINE 22	Option 9	\$	\$	\$ 0
	LINE 23	FAR 52.217-8 Option to Extend Services	\$	\$	\$ 0
LINE 24	Total dollars planned to be subcontracted	\$ 0	\$ 0	\$ 0	
<i>LINES 13-24 of Column C become the denominators used to auto-calculate the goals labeled "Percentage (%) of Total Planned Subcontract Dollars" in the following section. The numerators used are the "Total Planned Subcontract Dollars" for each period.</i>					

CONTRACTOR'S DIRECT SUBCONTRACT AWARDS
FAR 19.704(a)(1-2)

- Enter the dollars planned to be subcontracted to each socioeconomic subcategory of Small Business for every period of performance under this contract. Include the Base Year and, if applicable, Option Years and FAR 52.217-8.
- The same dollars may be applied to more than one Small Business subcategory.
Example: A \$100 subcontract to a women-owned, service-disabled veteran owned small business will auto-populate in ALL SB (including SDB, WOSB, HubZone, SDVOSB, VOSB). The same \$100 subcontract should also be applied to each of the following socioeconomic subcategories: WOSB; VOSB; and SDVOSB.

		TOTAL PLANNED SUB- CONTRACT DOLLARS	% SUB- CONTRACT DOLLARS	% CONTRACT DOLLARS			TOTAL PLANNED SUB- CONTRACT DOLLARS	% SUB- CONTRACT DOLLARS	% CONTRACT DOLLARS
ALL SB (including SDB, WOSB, HubZone, SDVOSB, VOSB)	Base	\$ 0	0.00%	0.00%		Opt 6	\$ 0	0.00%	0.00%
	Opt 1	\$ 0	0.00%	0.00%		Opt 7	\$ 0	0.00%	0.00%
	Opt 2	\$ 0	0.00%	0.00%		Opt 8	\$ 0	0.00%	0.00%
	Opt 3	\$ 0	0.00%	0.00%		Opt 9	\$ 0	0.00%	0.00%
	Opt 4	\$ 0	0.00%	0.00%		52.217-8	\$ 0	0.00%	0.00%
	Opt 5	\$ 0	0.00%	0.00%		TOTAL	\$ 0	0.00%	0.00%
SDB	Base	\$	0.00%	0.00%		Opt 6	\$	0.00%	0.00%
	Opt 1	\$	0.00%	0.00%		Opt 7	\$	0.00%	0.00%
	Opt 2	\$	0.00%	0.00%		Opt 8	\$	0.00%	0.00%
	Opt 3	\$	0.00%	0.00%		Opt 9	\$	0.00%	0.00%
	Opt 4	\$	0.00%	0.00%		52.217-8	\$	0.00%	0.00%
	Opt 5	\$	0.00%	0.00%		TOTAL	\$ 0	0.00%	0.00%
WOSB	Base	\$	0.00%	0.00%		Opt 6	\$	0.00%	0.00%
	Opt 1	\$	0.00%	0.00%		Opt 7	\$	0.00%	0.00%
	Opt 2	\$	0.00%	0.00%		Opt 8	\$	0.00%	0.00%
	Opt 3	\$	0.00%	0.00%		Opt 9	\$	0.00%	0.00%
	Opt 4	\$	0.00%	0.00%		52.217-8	\$	0.00%	0.00%
	Opt 5	\$	0.00%	0.00%		TOTAL	\$ 0	0.00%	0.00%
HUBZONE	Base	\$	0.00%	0.00%		Opt 6	\$	0.00%	0.00%
	Opt 1	\$	0.00%	0.00%		Opt 7	\$	0.00%	0.00%
	Opt 2	\$	0.00%	0.00%		Opt 8	\$	0.00%	0.00%
	Opt 3	\$	0.00%	0.00%		Opt 9	\$	0.00%	0.00%
	Opt 4	\$	0.00%	0.00%		52.217-8	\$	0.00%	0.00%
	Opt 5	\$	0.00%	0.00%		TOTAL	\$ 0	0.00%	0.00%
SDVOSB	Base	\$	0.00%	0.00%		Opt 6	\$	0.00%	0.00%
	Opt 1	\$	0.00%	0.00%		Opt 7	\$	0.00%	0.00%
	Opt 2	\$	0.00%	0.00%		Opt 8	\$	0.00%	0.00%
	Opt 3	\$	0.00%	0.00%		Opt 9	\$	0.00%	0.00%
	Opt 4	\$	0.00%	0.00%		52.217-8	\$	0.00%	0.00%
	Opt 5	\$	0.00%	0.00%		TOTAL	\$ 0	0.00%	0.00%
VOSB	Base	\$	0.00%	0.00%		Opt 6	\$	0.00%	0.00%
	Opt 1	\$	0.00%	0.00%		Opt 7	\$	0.00%	0.00%
	Opt 2	\$	0.00%	0.00%		Opt 8	\$	0.00%	0.00%
	Opt 3	\$	0.00%	0.00%		Opt 9	\$	0.00%	0.00%
	Opt 4	\$	0.00%	0.00%		52.217-8	\$	0.00%	0.00%
	Opt 5	\$	0.00%	0.00%		TOTAL	\$ 0	0.00%	0.00%

PRINCIPAL SUPPLIES/SERVICES TO BE SUBCONTRACTED & TYPE OF BUSINESS CONCERN SUPPLYING (check all that apply-attach additional sheets if necessary) FAR 19.704(a)(3)						
SUPPLIES/SERVICES	SB	SDB	WOSB	HUBZone	SDVOSB*	VOSB

*Any SDVOSB concern is also a VOSB concern, and should be included in both socioeconomic SB categories.

METHOD USED TO DEVELOP GOALS (check all that apply) FAR 19.704(a)(4)	
Describe the method used to develop the subcontracting goals.	
☐	Based on historical data and experience
☐	Market research
☐	Other: Explain

METHOD USED TO IDENTIFY POTENTIAL SOURCES (check all that apply) FAR 19.704(a)(5)	
Describe the method used to develop the subcontracting goals.	
☐	Company Source Lists
☐	System for Award Management (SAM) database
☐	Veteran Service Organizations
☐	National Minority Purchasing Council Vendor Information Service
☐	Research and Information Division of the Minority Business Development Agency in the Department of Commerce
☐	SB, HUBZone SB, SDB, and WOSB trade associations
☐	SB and Minority Business trade fairs or conferences
☐	Other: Explain

INDIRECT COSTS (check one)**FAR 19.704(a)(6)**

☐ Indirect costs **have not** been included in establishing subcontracting goals.

☐ Indirect costs **have** been included in establishing subcontracting goals.

If indirect costs **have** been included, explain the method used to determine the proportionate share of such costs to be incurred with SB, VOSB, SDVOSB, HUBZone, SDB, WOSB. Attach additional sheets if necessary.

PROGRAM ADMINISTRATOR**FAR 19.704(a)(7)**

Name:

Title:

Address:

Telephone:

E-mail:

PROGRAM ADMINISTRATOR'S DUTIES (check one)**FAR clause 52.219-9(e)**

☐ The Program Administer **does not have** overall responsibility for the subcontracting plan.
(If checked, provide an attachment explaining who in the company has this responsibility.)

☐ The Program Administer **does have** overall responsibility for the subcontracting plan and performs these functions:

- Assists SB, VOSB, SDVOSB, HUBZone, SDB, and WOSB by arranging solicitations, time for the preparation of bids, quantities, specifications, and delivery schedules so as to facilitate the participation by such concerns. Where the contractor's lists of potential SB, VOSB, SDVOSB, HUBZone, SDB, and WOSB subcontractors are excessively long, makes reasonable effort to give all SB concerns an opportunity to compete over time.
- Provides adequate and timely consideration of the potentialities of SB, VOSB, SDVOSB, HUBZone, SDB, and WOSB in all "make-or-buy" decisions.
- Counsels and discusses subcontracting opportunities with representatives of SB, VOSB, SDVOSB, HUBZone, SDB, and WOSB firms.
- Confirms that a subcontractor representing itself as a HUBZone SB concern is certified SBA as HUBZone SB concern in accordance with FAR 52.219-8(d)(2).
- Provides notice to subcontractors concerning penalties for misrepresentations of business status as SB, VOSB, SDVOSB, HUBZone, SDB, and WOSB concerns for the purpose of obtaining a subcontract that is to be included as part or all of a goal contained in the contractor's subcontracting plan.
- For all competitive subcontracts over the simplified acquisition threshold in which a SB concern received a SB preference, upon determination of the successful subcontract offeror, prior to award of the subcontract the confirms the contractor informs each unsuccessful SB subcontract offeror in writing of the name and location of the apparent successful offeror and if the successful subcontract offeror is a SB, VOSB, SDVOSB, HUBZone, SDB, or WOSB concern.
- Assigns each subcontract the NAICS code and corresponding size standard that best describes the principal purpose of the subcontract.
- Attach additional pages to describe any subcontracting duties performed, but not shown above or elsewhere.

EQUITABLE OPPORTUNITY (check all that apply)**FAR 19.704(a)(8)**

- Describe efforts to ensure all SB concerns have an equitable opportunity to compete for subcontracts.

Outreach/external efforts:

- ☐ Contact minority trade associations
- ☐ Contact business development organizations and local chambers of commerce
- ☐ Attend SB and Minority Business trade fairs or Conferences
- ☐ Review sources from SAM
- ☐ Utilize ads to encourage new sources
- ☐ Other: Explain

Internal efforts:

- ☐ Conduct workshops, seminars and training programs
- ☐ Establish, maintain, and utilize SB source lists, guides & other data for soliciting subcontractors
- ☐ Monitor activities to evaluate compliance with the subcontracting plan
- ☐ Other: Explain

CLAUSE INCLUSION AND FLOW DOWN**FAR 19.704(a)(9)**

The offeror provides assurances that it will include the clause 52.219-8, *Utilization of Small Business Concerns*, in all subcontracts that offer further subcontracting opportunities, and that the offeror will require all subcontractors (except SB concerns) that receive subcontracts in excess \$750,000 (\$1.5 million for construction) to adopt a plan that complies with the requirements of the clause at FAR 52.219-9, *Small Business Subcontracting Plan*.

REPORTING & COOPERATION**FAR 19.704(a)(10)**

The offeror provides assurances that it will

- Cooperate in any studies or surveys as may be required;
- Submit periodic reports so that the Government can determine the extent of compliance by the offeror with the subcontracting plan;
- After November 30, 2017, include subcontracting data for each order when reporting subcontracting achievements for indefinite-delivery, indefinite-quantity contracts intended for use by multiple agencies;
- Submit the Individual Subcontract Report (ISR), and the Summary Subcontract Report (SSR) using the Electronic Subcontracting Reporting System (eSRS) (<http://www.esrs.gov>), following the instructions in the eSRS.
 - The ISR shall be submitted semi-annually during contract performance for the periods ending March 31 and September 30. A report is also required for each contract within 30 days of contract completion. Reports are due 30 days after the close of each reporting period, unless otherwise directed by the contracting officer. Reports are required when due, regardless of whether there has been any subcontracting activity since the inception of the contract or the previous reporting period. When a contracting officer rejects an ISR, the contractor is required to submit a revised ISR within 30 days of receiving the notice of the ISR rejection.
 - The SSR shall be submitted annually by October 30 for the twelve-month period ending September 30. When an SSR is rejected, the contractor is required to submit a revised SSR within 30 days of receiving the notice of SSR rejection;
- Ensure that its subcontractors with subcontracting plans agree to submit the ISR and/or the SSR using the eSRS;
- Provide its prime contract number, its unique entity identifier, and the e-mail address of the offeror's official responsible for acknowledging receipt of or rejecting the ISRs to all first-tier subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their ISRs; and
- Require that each subcontractor with a subcontracting plan provide the prime contract number, its own unique entity identifier, and the e-mail address of the subcontractor's official responsible for acknowledging receipt of or rejecting the ISRs, to its subcontractors with subcontracting plans.

DESCRIPTION OF RECORDS**FAR 19.704(a)(11)**

The following list is a description of the types of records the offeror will maintain concerning procedures adopted to comply with the requirements and goals in the plan:

- Source lists (e.g., SAM), guides, and other data to identify SB, VOSB, SDVOSB, HUBZone, SDB, and WOSB.
- Organizations contacted to locate SB, VOSB, SDVOSB, HUBZone, SDB, and WOSB.
- Records on each subcontract solicitation resulting in an award of more than \$250,000, indicating whether SB, VOSB, SDVOSB, HUBZone, SDB, and WOSB were solicited and, if not, why not; and, if applicable, the reason award was not made to a SB concern.
- Records of any outreach efforts to contact trade associations; business development organizations; conferences and trade fairs; and, veterans service organizations.
- Records of internal guidance and encouragement provided to buyers through workshops, seminars, training, *etc.*; and monitoring performance to evaluate compliance with the program's requirements.
- On a contract-by-contract basis, records to support award data submitted to the Government, including the name, address, and business size of each subcontractor.

GOOD FAITH EFFORT**FAR 19.704(a)(12)**

The offeror provides assurances that it will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from SB concerns that it used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal. The SB concerns used in preparing the bid or proposal include the following concerns:

- Any SB concern identified as a subcontractor in the bid or proposal or associated SB subcontracting plan, to furnish certain supplies or perform a portion of the subcontract; or
- Any SB concern whose pricing or cost information or technical expertise was used in preparing the bid or proposal, where there is written evidence of an intent or understanding that the SB concern will be awarded a subcontract for the related work

**EXPLANATION WHEN FAILING TO ACQUIRE
AS STATED IN ASSURANCES OF GOOD FAITH EFFORT**

FAR 19.704(a)(13)

The offeror provides assurances that it will provide the Contracting Officer with a written explanation, within 30 days of contract completion, if the offeror fails to acquire articles, equipment, supplies, services or materials or obtain the performance of construction work as described in the offeror's assurances of good faith effort.

SUBCONTRACTOR ALLOWED TO TALK TO CONTRACTING OFFICER**FAR 19.704(a)(14)**

The offeror provides assurances that it will not prohibit a subcontractor from discussing with the Contracting Officer any material matter pertaining to payment to or utilization of a subcontractor.

TIMELY PAYMENTS TO SUBCONTRACTORS**FAR 19.704(a)(15)**

The offeror provides assurances that it will pay its SB subcontractors on time and in accordance with the terms and conditions of the underlying subcontract, and notify the contracting officer when the prime contractor makes either a reduced or an untimely payment to a SB subcontractor.

SIGNATURE AND DISTRIBUTION REQUIREMENTS**This subcontracting plan SUBMITTED by:**

Contractor/Offeree's Signature: _____

Typed/Printed Name: _____

Title: _____ Date: _____

This subcontracting plan REVIEWED AND APPROVED by:

Bureau Small Business Representative's Signature: _____

Typed/Printed Name: _____

Title: _____ Date: _____

This subcontracting plan ACCEPTED by:

Contracting Officer's Signature: _____

Typed/Printed Name: _____

Title: _____ Date: _____

This subcontracting plan REVIEWED by:Small Business Administration Procurement
Center Representative Signature: _____

Typed/Printed Name: _____

Title: _____ Date: _____